

Court No. - 3

Case :- WRIT - C No. - 24884 of 2017

Petitioner :- Raju Jaiswal (Rajiv Jaiswal)

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Anshul Kumar Singhal

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari, J.

Hon'ble Ravindra Nath Kakkar, J.

Heard Sri Anshul Kumar Singhal, learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for respondents no. 2 and 3.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the impugned demand notice dated 07.03.2017 issued by the respondent no. 3 and the recovery citation dated 04.05.2017 issued by respondent no. 5.

The challenge is merely on the ground that recovery proceedings have been initiated without providing any provisional assessment bill and notice and opportunity to contest the same.

Sri Mahboob Ahmad, learned counsel for the respondents, contends that since the petitioner did not file any objection to the provisional assessment, as such it was treated to be final and accordingly a recovery notice was issued.

Learned counsel for the petitioner points out that since the copy of the provisional assessment notice was never received by the petitioner, as such he could not submit his reply and thus, entire proceedings are vitiated.

Since there is no material on record to indicate the mode and manner of sending the provisional assessment, the only presumption which can be drawn that it was not sent to the petitioner. Further, the provisional assessment also does not indicate any date for hearing.

This Court in the case of ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660 (DB)*** has considered the provisions of the U.P. Electricity Supply Code, 2005 to be followed for assessment in case of theft of electricity. One of the essential requirement is that provisional notice should invite objections and also indicate a date and time for hearing of the

consumer. The procedure adopted by the respondents in making demand notice is de-hors the provisions of the U.P. Electricity Supply Code, 2005 and is in gross violation of clause 6.8 (b) of the said Code and, thus, the impugned demand notice issued against the petitioner cannot be sustained.

Consequently, the writ petition is allowed. The impugned demand notice dated 07.03.2017 issued by the respondent no. 3 and the recovery citation dated 04.05.2017 issued by respondent no. 5 are hereby quashed. However, it shall be open to the respondents to proceed against the petitioner in accordance with law, and the procedure prescribed.

Order Date :- 30.5.2017

Dcs